



CHAPTER cxxiii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Aberdeen Corporation. A.D. 1920.
[9th August 1920.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule

2. This Act may be cited as the Aberdeen Corporation Order Confirmation Act 1920. Short title.

A.D. 1920.

S C H E D U L E.

ABERDEEN CORPORATION.

*Provisional Order to confer further powers on the Corporation
of the City of Aberdeen in relation to their water
undertaking and for other purposes.*

WHEREAS by the Aberdeen Corporation Water Order 1916 (hereinafter referred to as "the Order of 1916") the lord provost magistrates and town council of the city and royal burgh of Aberdeen (hereinafter respectively referred to as "the Corporation" and "the city") were authorised for the purposes of their water undertaking to construct new waterworks for maintaining improving and increasing the supply of water from the River Dee at Cairnton to the city including an Aqueduct No. 3 from the filter beds at Invercannie to the service reservoir at Mannofield:

And whereas in order to diminish the cost and facilitate the construction of the said Aqueduct No. 3 authorised by the Order of 1916 it is expedient to authorise the Corporation to make the deviations thereof in the parish of Peterculter hereinafter described and to abandon so much of the said Aqueduct No. 3 as will be rendered unnecessary by the construction of the said deviations:

And whereas by the Order of 1916 the Corporation were authorised to borrow additional money for the purpose of constructing the said waterworks and for the other purposes of their water undertaking amounting in the whole to four hundred and fifty thousand pounds:

And whereas by reason of circumstances arising out of the European war the Corporation have been unable to borrow the moneys authorised by the Order of 1916 to be borrowed or to commence the construction of the works authorised by the Order of 1916 and the said moneys will be insufficient for that purpose:

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And whereas estimates have been prepared by the Corporation of the further sums of money that will be required to meet the increase in the cost of the works authorised by the Order of 1916 after allowing for the diminution in cost by the deviation works authorised by this Order and the said estimates are as follows:—

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	£
For the purchase of lands and servitudes - - -	2,000
For liming house buildings &c. - - -	3,400
For reservoirs embankments dams tanks &c. -	176,700
For tunnels and masonry conduits - - -	45,400
For trunk mains - - - - -	273,000
For machinery - - - - -	4,000
For the renewal and improvement of the existing aqueduct between Cairnton and the city -	52,000
For the general purposes of the water undertaking (including the construction of filters a storage reservoir and the extension of water mains)	118,500
Total -	<u>£675,000</u>

And whereas those works are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Corporation should be authorised to levy increased water rates rents and charges in order to meet the increased cost of maintenance of their water undertaking and to provide the annual sums required for the payment of interest and the repayment of principal in respect of moneys already borrowed and to be borrowed for the purposes of the water undertaking and that further provision should be made with respect to the revenue reserve fund established by the Order of 1916:

And whereas it is expedient that the other powers hereinafter mentioned should be conferred on the Corporation in relation to their water undertaking:

And whereas by the Public Libraries Consolidation (Scotland) Act 1887 the Corporation are authorised to levy for the purposes

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A.D. 1920. of that Act a rate of one penny in the pound of yearly rent or annual value as appearing on the valuation roll of the city :

And whereas the produce of a rate of one penny in the pound is insufficient to meet the annual expenditure required for these purposes and it is expedient that the Corporation should be authorised to increase the public library rate as provided by this Order :

And whereas the Corporation levy charges for market stands in Castle Street and in The Green and it is expedient that the said charges should be altered and revised and that the Corporation should be authorised to levy and collect the charges specified in the Second Schedule to this Order :

And whereas plans and sections showing the lines and levels of the deviation works authorised by this Order and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Aberdeen and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title
and citation.

1. This Order may be cited as the Aberdeen Corporation Order 1920 and this Order and the Aberdeen City Acts 1862 to 1916 may be cited together as the Aberdeen City Acts 1862 to 1920.

Interpre-
tation.

2. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be

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something in the subject or context repugnant to such construction And the following expressions shall have the meanings assigned to them in this section:— A.D. 1920.

“The city” means the city and royal burgh of Aberdeen;

“The Corporation” means the lord provost magistrates and town council of the city;

“The Act of 1862” means the Aberdeen Police and Waterworks Act 1862;

“The Act of 1891” means the Aberdeen Corporation Act 1891;

“The Order of 1916” means the Aberdeen Corporation Water Order 1916;

“The City Acts” means the Aberdeen City Acts 1862 to 1916;

“The water undertaking” means the existing waterworks and water undertaking of the Corporation and the works and undertaking authorised by the Order of 1916 and this Order;

In the Acts incorporated with this Order unless there be something repugnant to such construction the expression “the undertakers” means the Corporation.

3. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order:— Incorporation of Acts.

The Lands Clauses Acts:

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said clauses and provisions the expression “the company” means the Corporation and the expression “the railway” means the works described in this Order and the expression “the centre of the railway” means any part of those works:

The Waterworks Clauses Acts 1847 and 1863 except the provisions of the Waterworks Clauses Act 1847 with respect

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to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except the words in section 44 of the Waterworks Clauses Act 1847 "with the consent in writing of the owner or "reputed owner of any such house or the agent of such "owner" and except section 83 relating to accounts.

Power to
make works.

4. Subject to the provisions of this Order the Corporation may in the county of Aberdeen and parish of Peterculter and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say) :—

A deviation (Work No. 1) of the Aqueduct No. 3 (Work No. 8) authorised by the Order of 1916 consisting of a line or lines of pipes tunnels or other conduits commencing by a junction with the said aqueduct at a point on the north side of the public road known as the North Deeside Road fifty yards or thereabouts east of the dwelling-house known as Lorndale Milltimber and terminating by a junction with the said aqueduct at a point two hundred and forty yards or thereabouts east of the entrance lodge of the Tor-na-Dee Sanatorium Murtle:

A deviation (Work No. 2) of the said aqueduct consisting of a line or lines of pipes tunnels or other conduits commencing by a junction with the said aqueduct at a point on the north side of the unnamed road leading from the west entrance lodge of Norwood to the suspension foot-bridge at Cults fifty yards or thereabouts west of the said entrance lodge of Norwood and terminating at or in the existing Mannofield No. 2 Service Reservoir.

Provisions
of Order of
1916 to
apply to
deviation
works.

5. The works authorised by this Order shall be deemed to be part of the works authorised by the Order of 1916 and subject to the provisions of this Order the provisions of the Order of 1916 shall extend and apply to the deviation works authorised by this Order as if the said provisions had been expressly re-enacted in this Order and in construing the said provisions references in the Order of 1916 to the deposited plans sections and book of reference shall in relation to the works authorised by this Order mean the plans sections and book of

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reference deposited in the month of November one thousand nine hundred and nineteen with reference to this Order. A.D. 1920.

6. Subject to the provisions of this Order the Corporation may enter upon take and use for the purpose of the deviation works authorised by this Order all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

7. The powers of the Corporation for the compulsory purchase of lands for the purpose of the deviation works authorised by this Order shall cease after the nineteenth day of April one thousand nine hundred and twenty-four. Period for compulsory purchase of lands.

8. The period limited by section 17 (Period for compulsory purchase of lands) of the Order of 1916 for the compulsory purchase of lands for the purposes of the Order of 1916 is hereby extended for a further period of three years except in relation to the lands which would have been required for the portion of Aqueduct No. 3 authorised by the Order of 1916 and abandoned under the authority of this Order and the powers granted to the Corporation by the Order of 1916 for the compulsory purchase of lands as limited by that exception may be exercised until the nineteenth day of April one thousand nine hundred and twenty-four and shall then cease. Extending period for compulsory purchase of lands authorised by Order of 1916.

9. The period limited by section 18 (Period for completion of works) of the Order of 1916 for the completion of the works authorised by the Order of 1916 except the portion of Aqueduct No. 3 abandoned under the authority of this Order is hereby extended for a further period of four years and the powers granted to the Corporation by the Order of 1916 for executing the said works as limited by that exception and the powers granted by this Order for executing the deviation works authorised by this Order may be exercised until the nineteenth day of April one thousand nine hundred and thirty and shall then cease except as to so much thereof as shall then be completed. Period for completion of works authorised by Order of 1916 and deviation works.

10. And whereas in the construction of the deviation works authorised by this Order it may happen that portions only of certain houses or other buildings shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties Owners may be required to sell parts only of certain properties.

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A.D. 1920. without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the First Schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the arbiter to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto be required to sell and convey to the Corporation the portions only of the premises so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portion taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Abandonment
of portion of
Aqueduct No. 3
authorised by
Order of 1916.

11. The Corporation shall abandon the construction of so much of the Aqueduct No. 3 authorised by the Order of 1916 as is rendered unnecessary by the construction of the deviation works authorised by this Order.

Compensa-
tion for
damage to
land by
entry &c.
for purposes
of portion of
aqueduct
abandoned.

12. The abandonment by the Corporation under the authority of this Order of the portion of the said Aqueduct No. 3 authorised by the Order of 1916 shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Corporation on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out the line of work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Corporation to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof.

Compensa-
tion to be
made in
respect of
portion of
aqueduct
abandoned.

13. Where before the passing of the Act confirming this Order any contract has been entered into or notice given by the Corporation for the purchase of any land for the purposes of or in relation to any portion of the said Aqueduct No. 3 authorised to be abandoned by this Order the Corporation shall be released from all liability to purchase, or to complete the purchase of any such land but nevertheless full compensation shall be made by the Corporation to the owners and occupiers or other persons

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interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof: A.D. 1920.

14. Subject to the provisions of this Order the provisions of section 22 of the Order of 1916 (For protection of Great North of Scotland Railway Company) are hereby amended as follows (that is to say):— For protection of Great North of Scotland Railway Company.

Subsection (4) relating to the Works No. 8 and No. 9 authorised by the Order of 1916 shall extend and apply to the deviation Work No. 2 by this Order authorised:

Subsection (11) shall be read and have effect as if the words “or any stations or buildings or property belonging to the Company” were inserted after the words “in connexion therewith” occurring in that subsection.

15. Section 27 (For protection of Deeside Hydropathic Company Limited) and section 29 (For protection of trustees of estate of East Pitfodels) of the Order of 1916 are hereby repealed. Repeal of protective provisions of Order of 1916.

16. For the purposes of the works described in and authorised by the Order of 1916 as deviated under the powers of this Order the Corporation may borrow money at interest on the security and credit of the water rates charges and other revenues of the water undertaking in addition to the sums authorised by the Order of 1916 to be borrowed not exceeding the sums hereinafter in this section mentioned and the Corporation may make and grant bonds and assignments for the money so to be borrowed and the provisions of the Act of 1891 with respect to the form of mortgage or assignment shall in so far as applicable apply to the moneys to be borrowed under the authority of this Order. Power to borrow.

The sums hereinbefore referred to and authorised to be borrowed are as follows (namely):—

(A)—(1) For the purchase of lands and servitudes the sum of two thousand pounds;

(2) For liming house buildings &c. the sum of three thousand four hundred pounds;

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- (3) For reservoirs embankments dams tanks &c. the sum of one hundred and seventy-six thousand seven hundred pounds;
- (4) For tunnels and masonry conduits the sum of forty-five thousand four hundred pounds;
- (5) For trunk mains the sum of two hundred and seventy-three thousand pounds;
- (6) For machinery the sum of four thousand pounds:
- (B) For the renewal and improvement of the existing aqueduct between Cairnton and the city the sum of fifty-two thousand pounds:
- (c) For the general purposes of the water undertaking (including the construction of filters a storage reservoir and the extension of water mains) the sum of one hundred and eighteen thousand five hundred pounds:
- (D) For paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto such sum as may be necessary for that purpose.

Repayment
of moneys
borrowed.

17. The Corporation shall make provision for the repayment of the moneys borrowed under this Order within the respective periods hereinafter mentioned by one or other of the following methods as they may see fit (that is to say) either by repaying an equal portion of principal every year or by means of equal annual instalments of principal and interest or by means of an accumulating sinking fund The periods hereinbefore referred to shall be the following (that is to say):—

- (1) As to moneys borrowed for the purposes (A) and (B) mentioned in the preceding section of this Order fifty years from the date or dates of borrowing the same;
- (2) As to moneys borrowed for the purpose (c) mentioned in the preceding section of this Order forty years from the date or dates of borrowing the same;
- (3) As to moneys borrowed for the purpose (D) mentioned in the preceding section five years from the passing of the Act confirming this Order.

18. For the purposes of the Act of 1891 the powers by this Order granted to the Corporation to borrow moneys shall be deemed a borrowing power of the Corporation within the meaning of the Act of 1891 and may be exerciseable by the Corporation as if those borrowing powers had been a borrowing power of the Corporation under the Act of 1891 and the provisions of Part IV. (Borrowing and Corporation Stock) of that Act shall apply to the borrowing powers by this Order granted to the Corporation and this Order shall be deemed one of the City Acts specified in the Act of 1891.

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 Borrowing powers under this Order to be deemed borrowing powers under Act of 1891.

19.—(1) The Corporation shall have power—

Power to re-borrow.

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid:—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

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Application
of moneys
borrowed.

20. All moneys borrowed by the Corporation under this Order shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Extending
period for
revenue
reserve
fund and
increasing
amount.

21.—(1) Section 49 (Payments to revenue reserve fund) of the Order of 1916 shall be read and have effect as if the sum of one hundred and forty thousand pounds were inserted instead of the sum of seventy thousand pounds wherever occurring in that section and as if the period of five years therein mentioned had been reckoned from the date of the passing of the Act confirming this Order instead of from the date of the passing of the Act confirming the Order of 1916.

(2) Section 50 (Additional provision as to water rates) of the Order of 1916 shall be read and have effect as if the period of seven years therein mentioned had been reckoned from the date of the passing of the Act confirming this Order instead of from the date of the passing of the Act confirming the Order of 1916 and as if the words "by more than one hundred per centum" were inserted after the words "in any year" occurring in that section.

Increase of
public water
rate.

22. Section 37 (Public water rate to be levied) of the Aberdeen Corporation Water Act 1885 shall as regards the public water rate leviable within the city be read and have effect as if the words "fourpence" were therein inserted in place of "one penny."

Corporation
not bound
to supply
several
houses by
one pipe.

23. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Suspension of
constant pres-
sure during
repairs &c.

24. The water to be supplied by the Corporation need not be constantly laid on under pressure during the execution of necessary repairs renewals or alterations.

Power to
Corporation
to re-washer
water
fittings.

25. The Corporation may re-washer any water fittings belonging to any person supplied by them with water and that either gratuitously or on payment by such person of the reasonable charges of the Corporation in providing the necessary materials and workmanship.

26. The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

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Supply to
houses partly
used for
trade &c.

27. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation.

Notice of
discon-
tinuance.

28. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Corporation
of connect-
ing or dis-
connecting
meters.

29. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

Injuring
meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has

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A.D. 1920. fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Application of provisions of Act of 1862 with respect to offences and penalties.

30. The provisions and enactments contained in Parts XXXII. and XXXIV. of the Act of 1862 intituled respectively "Byelaws" and "Jurisdiction of police court" shall so far as applicable extend to offences penalties and fines under this Order.

Increase of public library rate.

31. In its application to the city section 8 (Rate not to exceed one penny per pound) of the Public Libraries Consolidation (Scotland) Act 1887 shall be read and have effect as if the amount of the library rate to be levied in any year by the Corporation shall in no case exceed the sum of twopence in the pound of yearly rent or annual value as appearing on the valuation roll instead of the sum of one penny as mentioned in that section but nothing in this Order shall prevent the Corporation from levying any higher rate under the authority of any Public General Act amending the said Act of 1887.

Charges for market stands.

32. The Corporation may levy and collect the charges specified in the Second Schedule to this Order for market stands in Castle Street and in The Green and the said charges shall be substituted for those at present levied and collected.

Disposal of lands in Nelson Street.

33. Section 36 (Power to let or sell refuse destructor lands) of the Aberdeen Corporation Order 1915 with respect to the lands in Nelson Street described in Part I. of the First Schedule to the Aberdeen Corporation Order 1911 shall be read and have effect as if the word "five" were substituted for the word "six".

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34. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of the revenues of the water undertaking or out of moneys borrowed under the authority of this Order.

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 Costs of
 Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

PROPERTIES WHEREOF PART ONLY MAY BE TAKEN.

County.	Parish or other Area.	Numbers on deposited Plans.
Aberdeen - - -	Parish of Peterculter - -	6 8 12 19 34.

THE SECOND SCHEDULE.

TABLE OF CHARGES FOR MARKET STANDS IN CASTLE STREET AND IN
 THE GREEN.

Every space of ground occupied each day or part of a day :—

1.—For the sale of goods commodities or wares where :—

- | | |
|--|--|
| (1) A stall is placed - - - | { $\frac{1}{2}d.$ per superficial foot.
Minimum charge 6d. |
| (2) A cart barrow or other vehicle
is placed - - - | { $\frac{1}{2}d.$ per superficial foot. |
| (3) No stall cart barrow or other
vehicle is placed - - - | { $\frac{1}{2}d.$ per superficial foot. |
| (4) The sale is by auction - - | { $1\frac{1}{2}d.$ per superficial foot.
Minimum charge 2s. |

2.—For any purposes other than the sale of goods commodities or wares where :—

- | | |
|--|---|
| (1) A stall is placed - - - | { 1d. per superficial foot.
Minimum charge 1s. |
| (2) A cart barrow or other vehicle
is placed - - - | { 1d. per superficial foot. |
| (3) No stall cart barrow or other
vehicle is placed - - - | { 1d. per superficial foot. |

All the above charges apply to Fridays and Saturdays On other days the charges are one-half of the above charges.

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